

Mahesh Chandra @ Mahesh Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 May 2023 · 2023:AHC:117754-DB · WRIT - C No. - 18366 of 2023 · **Disposed; clause 6.5 representation to be decided; coercive action stayed**

HEADNOTE

A writ seeking correction of electricity bills was disposed of by directing respondent no. 2 to decide the petitioner's representation dated 3 February 2023, treating it as one under clause 6.5 of the U.P. Electricity Supply Code, 2005, by a speaking order within six weeks, with no coercive action in the meantime.

FACTUAL SUMMARY

Mahesh Chandra, also known as Mahesh Singh, sought a mandamus directing the respondents to correct electricity bills issued to him. He had already filed a representation dated 3 February 2023. Counsel for the respondent Electricity Department stated that the representation could be treated as one under clause 6.5 of the U.P. Electricity Supply Code, 2005 and would be decided by the competent authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correction representation decided under clause 6.5

HOLDING

The petition was disposed of on the Electricity Department's statement that the representation dated 3 February 2023 could be treated as one under clause 6.5 of the U.P. Electricity Supply Code, 2005. Respondent no. 2 was directed to decide it by a speaking order within six weeks of receipt of a true attested copy of the order, and not to take any coercive action against the petitioner in the meantime. The Court did not itself correct the bills. ¶ 2-3

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided Respondent no. 2 was directed to decide the petitioner's pending representation dated 3 February 2023 by a speaking order within six weeks of receiving a true attested copy of the order. ¶ 2-3

6.5-representation-as-appropriate-remedy The Court accepted that the petitioner's representation seeking correction of electricity bills could be treated as a representation under clause 6.5 and decided by the competent authority, and disposed of the writ on that basis. ¶ 2-3

clause-6.5-alternate-remedy Instead of correcting the bills in writ jurisdiction, the Court relegated the dispute to a decision of the clause 6.5 representation and restrained coercive action only until that decision. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILLS ISSUED TO THE PETITIONER REQUIRE CORRECTION

Left to respondent no. 2 to decide the representation dated 3 February 2023 by a speaking order. ¶ 1-3